EAGLE MOUNTAIN
CITY COUNCIL MEETING MINUTES

OCTOBER 20, 4:00 PM
EAGLE MOUNTAIN CITY COUNCIL CHAMBERS
1650 E STAGECOACH RUN, EAGLE MOUNTAIN, UT 84005

ELECTED OFFICIALS PRESENT: Mayor Jared R. Gray; Councilmembers Craig Whiting, Melissa Clark, Rich Wood, Brett Wright and Zachory Huish.

CITY STAFF PRESENT: John Magness, Legislative and Policy Analyst; Evan Berrett, Director of Legislative and Strategic Services; Kimberly Ruesch, Director of Administrative Services; Marcus Draper, City Attorney; Lacie Messerly, City Recorder; Kyle Ireland, Communications Manager; Brandon Larsen, Planning Director; Steven Lehmitz, Planner; David Stroud, Senior Planner; Elizabeth Fewkes, Long Range Planner; Stephanie Allred, Deputy Recorder; Mack Straw, Assistant Public Works Director; Vince Hogge, City Engineer; Zac Hilton, Assistant Public Works Director; Brad Hickman, Public Works Director; David Ulibarri, Public Safety Director; and Erik Knutzen, Chief Deputy Sheriff.

CITY STAFF PRESENT ELECTRONICALLY: Benjamin Reeves, City Manager; Steve Mumford, Deputy City Manager, Michele Graves, Library Director,

4:00 PM WORK SESSION – CITY COUNCIL CHAMBERS

Mayor Gray called the meeting to order at 4:01 PM. He noted City Manager Ben Reeves and Deputy City Manager Steve Mumford were participating remotely.

1. DISCUSSION AND INFORMATION ITEMS

1.A. DISCUSSION – MAP Funding Capacity and Tier Prioritization

The recording of the discussion can be found online here at 00:04:01.

Affordable Housing Coordinator Kiara Polee provided an update on the Mortgage Assistance Program (MAP) and its funding capacity. She explained that demand exceeds available funding, outlined the current application prioritization process and program recipients, and requested feedback from the City Council on application prioritization. Ms. Polee also responded to questions from the City Council.

Councilmembers discussed potential additional funding for the Mortgage Assistance Program and opportunities to improve the program's effectiveness in serving eligible

recipients. City Council requested that staff review funding availability and demand projections.

1.B. DISCUSSION - Alternate Energy Overlay Zone Revisions

The recording of the discussion can be found online here at 00:19:20.

Director of Legislative and Strategic Services Evan Berrett presented the item and highlighted requested changes identified by the City Council. These included revisions to definitions, adjustments to waivers, approval authority for Alternate Energy Overlay Zone applications, points of consideration and recommendation, geothermal water impacts, and provisions related to natural gas and nuclear energy. Mr. Berrett responded to questions from the City Council. Councilmembers discussed the proposed updates and provided feedback on next steps.

1.C. DISCUSSION – Corrigan Farms Development Agreement

The recording of the discussion can be found online here at 00:59:57.

City Attorney Marcus Draper reviewed the revisions to the Development Agreement recommended by the City Council in previous meeting and responded to questions from the City Council.

2. CITY MANAGER INFORMATION ITEMS

The recording of the discussion can be found online here at 01:03:39.

Acting City Manager and Public Works Director Brad Hickman provided updates to the City Council.

3. AGENDA REVIEW

10.B. Firefly NPA 8 Phase A, Plat 3 – Into Warranty

10.C. Firefly NPA 8 Phase A, Plat 4 – Into Warranty

10.D. Firefly NPA 8 Phase A, Plat 5 – Into Warranty

The recording of the discussion can be found online here at 01:08:22.

Councilmember Wright requested that Items 10.B., 10.C. and 10.D. be removed from the Consent Agenda and voted on separately due to a conflict of interest, as he would need to abstain from voting on the items.

11.A. CHANGE ORDER – Airport Well #9 Drilling, Lang Equipment – Change Order #1

The recording of the discussion can be found online here at 01:09:25.

Assistant Public Works Director Mack Straw reviewed the change order and explained the reason for the increased cost.

13.A. A Resolution of Eagle Mountain City, Utah, Recognizing the Eagle Mountain Community Chaplain Program

The recording of the discussion can be found online here at 01:11:47.

Mayor Gray stated that Lyman Gifford would attend the Policy Session to introduce himself and provide a brief overview of chaplain services.

13.B. A Resolution of Eagle Mountain City, Utah, Approving a License Agreement for Encroachment with Pony Express Land Development, Inc.

The recording of the discussion can be found online here at 01:12:42.

City Attorney Marcus Draper provided a brief background of the item.

The City Council discussed holding a Special City Council Meeting to review the Speed Study results, considered a date and time for the meeting, and requested that City Recorder Lacie Messerly provide notice of the meeting.

4. ADJOURN TO A CLOSED SESSION

MOTION: *Councilmember Whiting moved to adjourn to a Closed Session for the purpose of discussion of pending or reasonably imminent litigation; the character, professional competence, or physical or mental health of an individual; the purchase, lease, sale, or exchange of real property; a proposed development agreement, project proposal, or financing proposal related to the development of land owned by the state or a political subdivision; and/or the deployment of security personnel, devices, or systems, pursuant to Section 52-4-205(1) of the Utah Code, Annotated. Councilmember Wood seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes

Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The recording of the motion can be found online here at 01:18:02.

The Work Session was adjourned at 5:17 PM.

7:00 PM POLICY SESSION – CITY COUNCIL CHAMBERS

5. CALL TO ORDER

Mayor Gray called the meeting to order at 7:04 PM and noted that City Manager Ben Reeves and Deputy City Manager Steve Mumford were attending virtually.

The recording of the discussion can be found online here at 01:21:15.

6. PLEDGE OF ALLEGIANCE

Acting City Manager and Public Works Director Brad Hickman led the Pledge of Allegiance.

7. INFORMATION ITEMS/UPCOMING EVENTS

The recording of the discussion can be found online here at 01:22:07.

Acting City Manager and Public Works Director Brad Hickman provided City events and updates.

Mayor Gray noted that Item 13.A. on the consent agenda was a Resolution recognizing the Eagle Mountain Chaplain Program. Lyman Gifford, an interfaith chaplain, introduced himself and his wife, Dee Gifford, and provided a brief overview of the program and the training chaplains received.

8. PUBLIC COMMENTS

Mayor Gray opened the public comment period at 7:12 PM.

City Recorder Lacie Messerly stated that public comment forms had been received in the Recorder's Office from two individuals who were not in attendance. Jill Jones requested a community saltwater pool and Jeff Lister identified the Golden Eagle sidewalk widening project as the topic of his comment.

Mayor Gray closed the public comment period at 7:12 PM.

The recording of the discussion can be found online here at 01:28:08.

9. CITY COUNCIL/MAYOR ITEMS

The Mayor and Councilmembers offered comments to the public.

The recording of the discussion can be found online here at 01:30:00.

CONSENT AGENDA

10. BOND RELEASES

10.A. Harmony Phase A, Plat 15 – Fencing

10.B. Firefly NPA 8 Phase A, Plat 3 – Into Warranty

10.C. Firefly NPA 8 Phase A, Plat 4 – Into Warranty

10.D. Firefly NPA 8 Phase A, Plat 5 – Into Warranty

10.E. Overland Village 2 Phase A, Plat 11 – Into Warranty

10.F. Harmony Phase A, Plat 15 – Out of Warranty

10.G. Harmony Phase A, Rachel Way & Ira Hodges Roadway – Out of Warranty

11. CHANGE ORDERS

11.A. CHANGE ORDER – Airport Well #9 Drilling, Lang Equipment – Change Order #1

11.B. CHANGE ORDER – Trailhead and Pony Express Traffic Signal – Change Orders #1 - #3

12. MINUTES

12.A. September 29, 2026 Minutes – City Council Project Planning Session

12.B. October 6, 2026 Minutes – Regular City Council Meeting

12.C. October 8, 2026 Minutes – City Council Budget Work Session

13. RESOLUTIONS

13.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Recognizing the Eagle Mountain Chaplain Program

13.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving a License Agreement for Encroachment with Pony Express Land Development, Inc.

13.C. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving a Reimbursement Agreement with Will-Power Ut, LLC

13.D. RESOLTION – A Resolution of Eagle Mountain City, Utah, Approving the Quicksilver Solar Community Reinvestment Project Area Interlocal Agreement between Eagle Mountain City and the Utah County Community Reinvestment Agency

MOTION: *Councilmember Wright moved to approve the Consent Agenda. removing Items 10.B., 10.C., and 10.D to be voted on separately. Councilmember Clark seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The recording of the motion can be found online here at 01:40:50.

Councilmember Wright recused himself from voting on Items 10.B., 10.C., and 10.D. due to a conflict of interest from ownership of rental property in the affected area.

MOTION: *Councilmember Clark moved to approve Consent Agenda Items 10.B., 10.C., and 10.D. Councilmember Whiting seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Abstain

The motion passed with a 4:0 vote.

The recording of the motion can be found online here at 01:41:45.

SCHEDULED ITEMS

14. CORRIGAN FARMS REZONE

14.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Rezoning Certain Lands Known as Corrigan Farms

The recording of the discussion can be found online here at 01:42:22.

Senior Planner David Stroud provided a background on the item, including the applicant's request to rezone the property to the RTI Overlay Zone. He noted that a public hearing was held on October 6, 2026, presented a map showing the proposed rezone location, and explained that the Planning Commission recommended approval. Mr. Stroud and City Attorney Marcus Draper responded to questions from the City Council.

MOTION: *Councilmember Wright moved to adopt an Ordinance of Eagle Mountain City, Utah, rezoning certain lands known as Corrigan Farms. Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The recording of the motion can be found online here at 01:46:55.

14.B. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Approving the Corrigan Farms Development Agreement

The recording of the discussion can be found online here at 01:47:29.

City Attorney Marcus Draper provided background on the item, explaining that the Development Agreement was associated with the property rezone, and highlighted updates to the agreement requested by the City Council. He also responded to questions from the City Council.

Councilmember Whiting commented on the timeline for the item's consideration, noting that it had been discussed at a previous City Council meeting.

Councilmembers summarized the requested changes to the Development Agreement and shared their views on the proposed revisions.

MOTION: *Councilmember Wright moved to adopt an Ordinance of Eagle Mountain City, Utah, Approving the Corrigan Farms Development Agreement. Councilmember Clark seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	No
Brett Wright	Yes

The motion passed with a 4:1 vote.

The recording of the motion can be found online here at 01:53:40.

15. RESOLUTIONS

15.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Authorizing the Land Disposal Application to Proceed and Directing Staff to Begin the Notice and Public Hearing Process for a Portion of Utah County Parcel No. 38:257:0108, Designated as "Significant Real Property" Pursuant to Eagle Mountain Municipal Code 3.30.060.

The recording of the discussion can be found online here at 01:54:21.

City Recorder Lacie Messerly presented the Land Disposal Application and identified the location of the subject property. The City Council discussed the land disposal process, potential future uses of the property by the City, the possibility of selling the property and use of the proceeds, and the option of having the Community Services Board review the property and present a plan to the City Council. City Attorney Marcus Draper responded to questions from the City Council.

Applicant Allen Barney responded to questions from the City Council regarding the land disposal application.

Acting City Manager and Public Works Director Brad Hickman responded to questions regarding the City's potential future use of the property.

MOTION: *Councilmember Wood moved to table a Resolution of Eagle Mountain City, Utah, Authorizing the Land Disposal Application to proceed and directing staff to begin the notice and public hearing process for a portion of Utah County Parcel No. 38:257:0108, Designated as*

"Significant Real Property" Pursuant to Eagle Mountain Municipal Code 3.30.060, and to direct the Community Services Board to review all open space between houses as part of this application. Councilmember Whiting seconded the motion.

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The recording of the motion can be found online here at 02:26:49.

16. ORDIANCES/PUBLIC HEARING

16.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code Section 16.25.040 Application, 17.10.030 Definitions, and 17.60.040 General Landscape Provisions

The recording of the discussion can be found online here at 02:32:54.

Long Range Planner Elizabeth Fewkes provided background on the item and explained the purpose of the proposed amendments under HB 215. She explained that the amendments would identify Wildland-Urban Interface (WUI) lots on final plats, allow vegetation removal as required by Utah Code, and add related definitions. Ms. Fewkes responded to questions from the City Council.

Mayor Gray opened the Public Hearing period at 8:18 PM. Seeing no one wished to speak Mayor Gray closed the Public Hearing at 8:19 PM.

MOTION: *Councilmember Whiting moved to adopt An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code Section 16.25.040 Application, 17.10.030 Definitions, and 17.60.040 General Landscape Provisions. Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The recording of the motion can be found online here at 02:36:40.

17. LEGISLATIVE ITEMS

17.A. UPDATE – Legislative Priorities List

The recording of the discussion can be found online here at 02:37:18.

John Magness provided updates on the legislative priorities list and requested feedback on the wildlife corridor renaming and updated map. He also responded to questions from the City Council.

Planning Director Brandon Larson and Acting City Manager and Public Works Director Brad Hickman provided context regarding the wildlife corridor.

18. CITY COUNCIL/MAYOR'S BUSINESS AND LIAISON REPORTS

Mayor Gray and the City Councilmembers offered comments and reports on committees to which they are assigned as liaisons.

The recording of the discussion can be found online here at 02:40:57.

19. COMMUNICATION ITEMS

20. ADJOURNMENT

MOTION: *Councilmember Wright moved to adjourn the meeting at 8:32 PM. Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The recording of the motion can be found online here at 02:49:22.

The meeting was adjourned at 8:32 PM.

Approved by the City Council on November 4, 2026.

Lacie A. Messerly

Lacie A. Messerly
City Recorder